

PETITION - GEORGIA FIRST-OFFENDER RESTRICTION AND SEALING PETITION UNDER Sec. 42-8-62.1

IN THE COURT
(the Georgia court that entered the first-offender sentence or disposition)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

GEORGIA FIRST-OFFENDER RESTRICTION AND SEALING PETITION UNDER Sec. 42-8-62.1

A. WHAT THE COMMITTED RECORD ESTABLISHES ABOUT THIS ROUTE

This petition is brought on the route the committed route contract records as "First-offender restriction and sealing under the July 1, 2026 amendments", under O.C.G.A. Sec. 42-8-62.1.

The compiled Georgia profile records the substance of this route as follows. Misdemeanors committed before age 21 (with exceptions for serious traffic, sexual, and certain other offenses) have long been restrictable, and retroactive First Offender treatment (O.C.G.A. Sec. 42-8-66) can in some cases convert a conviction into a first-offender discharge that is then restrictable.

The committed contract records the timing of this route as: restriction and sealing are addressed at sentencing or disposition under the amended process; older first-offender records use the applicable retroactive petition or correction mechanism.

The committed contract records these conditions on the route: Separate post-July 1, 2013 nonconviction, pardoned-felony, and first-offender mechanisms; Apply July 1, 2026 first-offender law prospectively as written.

B. THE PETITIONER

Name: Maria-Alejandra O'Shaughnessy-Whitfield
Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself, never from memory.

[C1 - arrest and disposition dates] Arrest and disposition dates?

.....

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[C2 - exact offense] Exact offense?

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.....

[C3 - first-offender sentence/discharge] First-offender sentence/discharge?

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[C4 - pardon and date] Pardon and date?

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[C5 - pending/later charges] Pending/later charges?

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.....

[C6 - restriction/sealing status] Restriction/sealing status?

.....
.....

D. THE REQUEST

The petitioner asks the Court for the restriction and sealing that O.C.G.A. Sec. 42-8-62.1 provides on the facts stated above.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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Route: obligation:runtime-only:GA:youthful-first-offender-restriction-route

FILING INSTRUCTIONS - GEORGIA FIRST-OFFENDER RESTRICTION AND SEALING PETITION UNDER Sec. 42-8-62.1

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

FILING INSTRUCTIONS - GEORGIA FIRST-OFFENDER RESTRICTION AND SEALING PETITION UNDER Sec. 42-8-62.1

WHAT THIS ROUTE IS, AND WHO RUNS IT

The committed route contract records this route as "First-offender restriction and sealing under the July 1, 2026 amendments", under O.C.G.A. Sec. 42-8-62.1, with outcome mode "participant_packet".

The committed contract names the packet components for this route as: Petition or motion under Sec. 42-8-62.1; First-offender discharge documentation. This packet composes the filing pages; anything on that list that is a RECORD rather than a pleading is a document you obtain and file with the petition.

Who runs it: The participant petitions and the court decides. Two things run in a fixed order, and the compiled profile records both: RESTRICTION hides the record in the GCIC criminal-history system, but the clerk of court's file remains a public court record; to close that, the person files a motion or petition to seal the clerk's record under Sec. 35-3-37(m). Restriction must occur first; sealing is the second step.

WHAT YOU DO

- Establish which side of the July 1, 2026 change your record falls on. The committed contract records that the intake must branch explicitly on that date and that the new law is applied prospectively as written.
- Fill every labelled item on the petition from the court record itself.
- Sign and date the petition personally.
- Expect two steps, not one: restriction first, then sealing of the clerk's file under Sec. 35-3-37(m).

WHAT YOU DO NOT DO

- Do not treat this as the Sec. 42-8-66 RETROACTIVE first-offender route. That is a different statute with a different family in this same lane, and its first step is the prosecuting attorney's written consent, not a filing.
- Do not expect the clerk's file to close by itself. The compiled profile records that restriction leaves the clerk's file public until the separate Sec. 35-3-37(m) step is taken.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

No committed record this packet binds states a filing fee, or a fee waiver, for this route. The office that answers both is the office of the clerk of the Georgia court that entered the first-offender sentence or disposition. Ask before you go, because a filing you cannot pay for is a filing you cannot make.

WHO MUST BE SERVED, AND WHO IS NOTIFIED

No committed record this packet binds states a service requirement for a Sec. 42-8-62.1 petition. The office that answers who must be served, and how, is the office of the clerk of the Georgia court that entered the first-offender sentence or disposition.

WHEN TO STOP AND GET HELP INSTEAD

- your record may fall on the pre-July 1, 2026 side of the statutory change - the committed contract records that the intake must branch explicitly on that date;
- what you actually need is RETROACTIVE first-offender treatment under O.C.G.A. Sec. 42-8-66, which is a different statute and a different route, and whose first step is the prosecuting attorney's written consent;
- the offence is one of the serious traffic, sexual or other offences the compiled profile records as exceptions;
- you are unsure whether restriction or sealing is what you need, or in what order;
- any immigration question is involved.

Route: obligation:runtime-only:GA:youthful-first-offender-restriction-route